

		party may set out alternative claims for relief. (<i>Id.</i> (citing Fed.R.Civ.P. 8(d)(2)). Accordingly, the Ninth Circuit found the allegation that the defendant had enticed plaintiffs "to purchase their products through false and misleading labeling, and that [defendant] was unjustly enriched as a result," was "sufficient to state a quasi-contract cause of action." (<i>Id.</i>)" (<i>Loop AI Labs Inc v. Gatti</i>, No. 15-CV-00798-HSG, 2015 WL 5158639, at *6 (N.D. Cal. Sept. 2, 2015).) As noted, Plaintiff has pled sufficient facts to support Kohlschreiber potentially being the guarantor to the Contract. As such, Plaintiff could seek restitution from Kohlschreiber under the terms of the Contract. However, to the extent that Kohlschreiber is not found to be a party to the Contract, Plaintiff could still seek unjust enrichment and restitution of the allegedly stolen Equipment against Kohlschreiber under a quasi-contract. This issue does not support sustaining the demurrer. As none of Kohlschreiber's arguments support sustaining the demurrer, the demurrer is OVERRULED. <i>Kohlschreiber to give notice.</i>
9.	Diaz v. W.E. O'Neil Construction of CA 23-1303195	The demurrer to the First Amended Complaint ("FAC") of Plaintiff, Plutarco Diaz ("Plaintiff") filed by Defendant, Guy Yocom Construction, Inc. ("Defendant") is OVERRULED. Defendant contends the causes of action for negligence and premises liability in the FAC are barred by the California Supreme Court decision in <i>Privette v. Superior Court</i> (1993) 5 Cal.4th 689 and its progeny. The <i>Privette</i> doctrine bars employees of independent contractors from recovering damages from the hirer of the contractor for workplace injuries. (<i>SeaBright Ins. Co. v. US Airways, Inc.</i> (2011) 52 Cal.4th 590, 594.) An exception to the <i>Privette</i> doctrine was set forth in <i>Hooker v. Dept. of Transportation</i> (2002) 27 Cal.4th 198 and is based on the concept of negligent exercise of retained control. "[A] hirer of an independent contractor is not liable to an employee of the contractor merely because the hirer retained control over safety conditions at a worksite, but ... a hirer is liable to an employee of a contractor insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries." (<i>Hooker</i>, 27 Cal.4th at 202.) "Affirmative contribution occurs where a general contractor is actively involved in, or asserts control over, the manner of performance of the contracted work.

		[Citation.] Such an assertion of control occurs, for example, when the principal employer <i>directs</i> that the contracted work be done by use of a certain mode or otherwise interferes with the means and methods by which the work is to be accomplished. [Citation.] [Citation.]” (<i>Millard v. Biosources, Inc.</i> (2007) 156 Cal.App.4th 1338, 1348.) (Emphasis in original; internal quotations omitted.) The Court finds the allegations in the FAC are sufficient at the pleading stage to demonstrate Plaintiff’s claims fall within the <i>Hooker</i> exception to the <i>Privette</i> doctrine. The allegations are sufficient to demonstrate that Defendant retained a sufficient degree of authority over Four Star’s work and that Defendant exercised that control in a manner that affirmatively contributed to Plaintiff’s injury. (FAC, ¶¶ 11-12.) Accordingly, as alleged, Plaintiff’s claims in the FAC do not appear barred by the <i>Privette</i> doctrine and the demurrer is thus OVERRULED. Defendant is to file and serve an answer to the FAC within 10 days. <i>Counsel for Plaintiff is to give notice.</i>
10.	Greencorn v. Ayres Hotel Anaheim 22-1275741	The unopposed demurrer to the complaint of Plaintiff, Joshua Greencorn (“Plaintiff”) filed by Defendant, Ayres Hotel Company, Inc. (“Defendant”) is SUSTAINED with 20 days leave to amend. First Cause of Action – Battery: Defendant is correct that Plaintiff fails to plead facts to show Defendant touched Plaintiff, or caused Plaintiff to be touched, with the intent to harm or offend Plaintiff. (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669 [elements of battery].) It is unclear from the Complaint how Defendant made harmful or offensive contact with Plaintiff’s person. The demurrer to the first cause of action is thus SUSTAINED with 20 days leave to amend. Third Cause of Action – IIED: Plaintiff fails to plead extreme and outrageous conduct directed at Plaintiff. (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903; <i>Chang v. Lederman</i> (2009) 172 Cal.App.4th 67, 86.) The allegations that Defendant failed to properly clean and maintain the hotel room and failed to notify Plaintiff of the presence of bed bugs do not show that Defendant acted intentionally to harm Plaintiff or engaged in conduct especially calculated to cause harm to Plaintiff, nor do